ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General
VANESSA ING
Deputy Attorney General
State Bar No. 329577
455 Golden Gate Avenue, Suite 11000
San Francisco, CA 94102-7004
Telephone:
Fax: (415) 703-5480
E-mail: Vanessa.Ing@doj.ca.gov
Attorneys for Respondents Gerardo Serrato, Gary Paul, and Eric Dutra

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, **v.** **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **JOINT STIPULATION TO ADVANCE DATES OF HEARINGS ON DEMURRERS OF INDIVIDUAL RESPONDENTS; [PROPOSED] ORDER** Judge: The Honorable Jenna M. Whitman Trial Date: None Set Action Filed: May 29, 2026

Petitioner Brendan Ngehsi Newanforbi ("Petitioner") and Respondents Gerardo Serrato ("Capt. Serrato"), Gary Paul ("Lt. Paul"), Eric Dutra ("Sgt. Dutra") (collectively, "Individual Respondents"), by and through their respective counsel, hereby stipulate as follows:

RECITALS

1. Petitioner filed his Petition for Writ of Mandate against Respondents California Highway Patrol ("CHP"), Gerardo Serrato, Gary Paul, and Eric Dutra in this action on May 29, 2026.

2. The Individual Respondents were served with the Petition for Writ of Mandate on June 30, 2026.

3. On July 10, Respondent CHP filed its Demurrer to the Petition for Writ of Mandate. Respondent CHP reserved a hearing date of August 28, 2026.

4. On July 27, 2026, counsel for the Individual Respondents reserved hearing dates of October 16, 2026 and October 23, 2026 for the Individual Respondents' intended Demurrers and Joinders to CHP's Demurrer.

5. On July 27, 2026, during a telephonic meet-and-confer, counsel for Petitioner and the Individual Respondents agreed to stipulate to advance the October 16 and October 23 hearing dates to August 28, 2026, to be heard at the same time as CHP's Demurrer. Communications reflecting that agreement were exchanged between counsel.

6. On July 30, 2026, the Individual Respondents filed their Demurrers and Joinders to Respondent California Highway Patrol's Demurrer to the Petition for Writ of Mandate.

STIPULATION

The parties respectfully request and **HEREBY STIPULATE** as follows:

1. The October 16 and October 23 hearings on the Individual Respondents' Demurrers and Joinders to CHP's Demurrer shall be advanced to August 28, 2026, at 9:00 a.m., to be heard at the same time as CHP's Demurrer.

IT IS SO STIPULATED.

[*Signature Page Immediately Follows*]

Dated: July 30, 2026

BRENDAN NGEHSI NEWANFORBI

By: 

Brendan Ngehsi Newanforbi

Petitioner, Pro Se

Dated: July 30, 2026

CALIFORNIA DEPARTMENT OF JUSTICE

By: /s/ *Vanessa Ing*

Vanessa Ing
Mark R. Beckington

Attorneys for Respondents Gerardo Serrato, Gary Paul, and Eric Dutra

[PROPOSED] ORDER

After full consideration of the Parties' Joint Stipulation to Advance Dates of Hearings on Demurrers of Individual Respondents, the Court **HEREBY ORDERS** as follows:

IT IS ORDERED that the hearings on the Demurrers and Joinders of Respondents Gerardo Serrato, Gary Paul, and Eric Dutra be advanced to August 28, 2026 at 9:00 a.m.

IT IS SO ORDERED.

DATED: _____

_____
Hon. Jenna M. Whitman
Judge of the California Superior Court

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DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
Case No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Melissa.Mendiola@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On July 31, 2026, I served the attached:

- **JOINT STIPULATION TO ADVANCE DATES OF HEARINGS ON DEMURRERS OF INDIVIDUAL RESPONDENTS; [PROPOSED] ORDER**

by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-Mail: bnn.cdl@gmail.com

Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on July 31, 2026, at San Francisco, California.

M. Mendiola
Declarant

M. Mendiola
Signature

SA2026303341